



European Court says proceedings resulting in dismissal of Albanian prosecutor should be reopened

In today's **Chamber** judgment¹ in the case of [Besnik Cani v. Albania](#) (application no. 37474/20) the European Court of Human Rights held, unanimously, that there had been:

a violation of Article 6 § 1 (right to a fair trial) of the European Convention on Human Rights.

The case concerned a former prosecutor who was dismissed in 2020 as part of an exceptional process for the re-evaluation of all serving judges and prosecutors – known as vetting proceedings – following a reform of the justice system in Albania, and his doubts about one of the judges appointed to hear his case.

The applicant argued that the judge in question should have been disqualified because he had previously been dismissed as a district-court judge, meaning that he had been appointed to the Special Appeal Chamber which had examined his case in breach of the rules on eligibility. Furthermore, the domestic courts had refused to examine the applicant's arguments in that regard.

The Court found that the applicant's argument had amounted to a serious and arguable claim of a manifest breach of a fundamental rule of the domestic law that had adversely affected the appointment of one of the judges sitting on the bench which had heard his case.

It therefore concluded that the applicant's right to a "tribunal established by law" had been violated.

It also found under **Article 46 (binding force and implementation)** that the most appropriate redress for the violation of the applicant's rights would be to reopen the case and re-examine it in accordance with the requirements of Article 6 § 1 of the Convention. The finding of a violation could not, however, in itself be taken to require the reopening of all similar cases that have in the meantime become *res judicata* under domestic law.

A legal summary of this case will be available in the Court's database HUDOC ([link](#))

Principal facts

The applicant, Besnik Cani, is an Albanian national who was born in 1970 and lives in Tirana (Albania).

He is a former prosecutor who was dismissed in 2020 after vetting proceedings against him. Due to widespread concern about corruption, Albania had embarked in 2016 on a far-reaching reform of the justice system, including the vetting of all judges and prosecutors.

Mr Cani was appointed to the post of prosecutor in 2003. He was vetted at first instance in 2018 by the Independent Qualification Commission ("the IQC"), which confirmed him in post. However, in February 2020 on appeal, the Special Appeal Chamber ("the SAC") reversed the IQC's decision and dismissed him with immediate effect. The SAC found that Mr Cani had made inaccurate declarations

1. Under Articles 43 and 44 of the Convention, this Chamber judgment is not final. During the three-month period following its delivery, any party may request that the case be referred to the Grand Chamber of the Court. If such a request is made, a panel of five judges considers whether the case deserves further examination. In that event, the Grand Chamber will hear the case and deliver a final judgment. If the referral request is refused, the Chamber judgment will become final on that day.

Once a judgment becomes final, it is transmitted to the Committee of Ministers of the Council of Europe for supervision of its execution. Further information about the execution process can be found here: www.coe.int/t/dghl/monitoring/execution.

on his and his relations assets and that he had been involved in a conflict of interest by entering into a commercial agreement with a petrol company.

Mr Cani lodged motions to exclude one of the five judges, L.D., who was sitting on the SAC bench examining his case. He alleged that L.D. had been appointed to the SAC despite the fact that he had been dismissed from his post as judge of the District Court of Tirana in 1997 for breaching the law and incompetence, in violation of the statutory eligibility requirements.

The SAC, and subsequently the Constitutional Court, refused to examine Mr Cani's challenges against the appointment of Judge L.D. on the grounds that they lacked jurisdiction.

Mr Cani had also meanwhile lodged a criminal complaint against L.D. pending the vetting proceedings, alleging that he had committed forgery because he had stated in his application to the SAC that he had never been dismissed from any position as an officer of the court.

The domestic courts found L.D. guilty and sentenced him to a six-month suspended prison sentence. They concluded in particular that a previous dismissal disqualified a candidate from holding certain positions within the legal system and that, contrary to L.D.'s argument, disciplinary measures for very serious breaches were not removed from a judge's record over time.

The Supreme Court ultimately upheld the lower courts' findings in October 2021, following which a disciplinary commission dismissed him as a SAC judge.

Complaints, procedure and composition of the Court

Relying in particular on Article 6 (right to a fair trial) of the European Convention on Human Rights, Mr Cani alleged in particular that judge L.D. should have been disqualified from the SAC because he had previously been dismissed as a district-court judge.

The application was lodged with the European Court of Human Rights on 25 August 2020.

Judgment was given by a Chamber of seven judges, composed as follows:

Georges **Ravarani** (Luxembourg), *President*,
 Georgios A. **Serghides** (Cyprus),
 María Elósegui (Spain),
 Darian **Pavli** (Albania),
 Peeter **Roosma** (Estonia),
 Andreas **Zünd** (Switzerland),
 Frédéric **Krenc** (Belgium),

and also Milan **Blaško**, *Section Registrar*.

Decision of the Court

Article 6 § 1

The applicant argued in particular that the SAC, which had vetted and dismissed him, was not a "tribunal established by law" because one of the judges sitting on the bench, L.D., had been appointed in breach of the statutory eligibility requirements, namely he had previously been dismissed as district-court judge.

The Government contested that argument, submitting that the authorities – Parliament – could not be criticised for L.D.'s appointment to the SAC as they had not been aware of his previous dismissal.

The Court, on the other hand, found that it was up to the domestic authorities to have employed all means available, including checking L.D.'s application, to ensure that judges appointed to the SAC

fulfilled the statutory requirements for their position. Such a verification would not have been difficult: L.D.'s dismissal had been a matter of official record, and indeed a member of the *ad hoc* parliamentary committee had specifically asked the judge during his SAC interview whether he had been dismissed or resigned as a district-court judge in 1997.

The Court therefore found that the applicant had made out a serious and arguable claim of a manifest breach of domestic law in the appointment of L.D. to the SAC. Furthermore, it considered that the question of whether L.D. had been fit for office had concerned a fundamental rule in respect of the appointment of a judge.

Moreover, no domestic authority had examined, let alone remedied, the question of whether L.D. had been appointed to the SAC in accordance with domestic law. L.D. had admittedly been dismissed following his criminal conviction, but that had only come after the applicant had himself been dismissed in a final and unappealable judgment by the SAC.

The Court concluded that there had been a violation of Mr Cani's right to "a tribunal established by law" under Article 6 § 1 owing to the fact that L.D. had sat on the bench which had examined his case.

Given that finding, the Court held, by 6 votes to 1, that there was no need to examine the remaining complaints under Articles 6 § 1 and 8 of the Convention.

Article 41 (just satisfaction)

The Court dismissed, unanimously, the applicant's claim for just satisfaction in respect of pecuniary damage and held, by 6 votes to 1, that the finding of a violation constituted sufficient just satisfaction in respect of any non-pecuniary damage.

Article 46 (binding force and implementation)

The Court noted that the vetting proceedings had had serious consequences for Mr Cani as he had been immediately dismissed and given a lifetime ban on returning to a prosecutorial or judicial post. It considered that the most appropriate form of redress for the violation of the applicant's right to a "tribunal established by law" would be to reopen those proceedings and to re-examine the case in accordance with the requirements of Article 6 § 1 of the Convention.

The finding of a violation could not, however, in itself be taken to require the reopening of all similar cases that have in the meantime become *res judicata* under domestic law.

Lastly, it refused Mr Cani's request to order the Government to immediately reinstate him as a prosecutor.

Separate opinion

Judge Serghides expressed a partly concurring and partly dissenting opinion which is annexed to the judgment.

The judgment is available only in English.

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.